

Decided On : 4.12.2024 vs Mahinder Lal on 4 December, 2024

2024:HHC:14075 IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA CMPMO No:443
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----- Shalu
...Petitioner Versus Mahinder LalRespondent Coram Hon'ble Mr. Justice Ranjan Sharma, Judge
1 Whether approved for reporting? Yes For the petitioner : Mr. Romesh Verma, Senior Advocate
with Mr. Sumit Sharma, Advocate.

For the respondent : Mr. Hardeep Verma, Advocate.

Ranjan Sharma, Judge [Oral] Respondent, namely, Mahinder Lal, has filed a HMA No.157 of 2023, titled as Mahinder Lal versus Shalu, under Section 13 of the Hindu Marriage Act, pending before Learned Principal Judge (Family Court) Shimla, District Shimla, (HP).

2. By way of instant petition, the Petitioner- wife, Shalu, has come up before this Court seeking following relief(s):-

" It is, therefore, respectfully prayed that this petition may kindly be allowed and petition 1 Whether reporters of Local Papers may be allowed to see the judgment? Yes 2024:HHC:14075 under Section 13 of the Hindu Marriage Act for decree of divorce pending bearing petition No.157/2023 pending in the Court of learned Principal Judge (Family Court), Shimla fixed for 22.08.2024 may kindly be transferred to the Court of learned Principle Judge (Family Court) Kinnaur at Rampur Bushhar, Disttict Shimla, H.P. in the interest of justice, equity and fair play."

FACTUAL MATRIX:

2. Case set up by Mr. Romesh Verma, Learned Senior Counsel assisted by Mr. Sumit Sharma, Advocate, that the marriage of Petitioner-Shalu was solemnized with Respondent-Mahinder Lal in the month of May, 2014 at Village Tippiari, P.O. Jar, Tehsil Kumarsain, District Shimla and they have two daughters, Kumari Angel, 9 years and Kumari Shivangi, 5 years, who are currently in custody of the petitioner. It is averred that soon after marriage, the Respondent and his parents harassed the petitioner mentally as well as physically, ousting her and is compelling her to leave her matrimonial home. Faced by circumstances, the petitioner and two minor children went to live at her native place, with the hope that she will be treated properly by respondent and his family members. However, there was no improvement 2024:HHC:14075 and she has to suffer huge mental as well as physical torture and cruelties. Further with the intervention of the family members and near relatives, though the bickering between the parties were resolved but the respondent and his family members again resorted to maltreatment and acts of cruelty. However in month of March 2021, the petitioner was again compelled to leave her matrimonial

home. Due to this inaction, the petitioner and minor children filed a petition [Registration No.35-R/4 of 2023] for maintenance under Section 125 of the Code of Criminal Procedure, which is pending before Learned Principal Judge, [Family Court] Kinnaur at Rampur Bushehar, wherein, the Respondent-Mahinder Lal is evading service-

appearance and these proceedings were scheduled for 22.08.2024 [Annexure P-1]. The Respondent husband [Mahinder Lal] has filed a petition [HMM Petition No.157 of 2023] under Section 13(1) (i) & 13(1) (ia) of HM Act for dissolution of marriage before the Learned Principal Judge (Family Court) Shimla as per summons dated 20.05.2024 [Annexure P-2].

2024:HHC:14075 3(i). Petitioner further submits that she has no means of livelihood and she has no movable and immovable property in her name and she is unable to attend the proceedings at Shimla due to financial constraints. On the other hand, the respondent is financially well off having various movable and immovable properties, who can come over to Rampur Bushehar which will not cause any prejudice to the Respondent, who can attend both the proceedings [HMA case under Section 13 of Hindu Marriage Act and Maintenance Case under Section 125 Code of Criminal Case at one place i.e. Kinnaur at Rampur Bushehar.

In above background, the petitioner has prayed that the proceedings i.e. HMA No.157 of 2023, [Annexure P-2], titled as Mahinder Lal versus Shalu, pending before the Court of Learned Principal Judge (Family Court), Shimla, District Shimla [HP] may be transferred to the Court of Learned Principal Judge [Family Court] Kinnaur at Rampur Bushehar, [HP].

2024:HHC:14075 PROCEEDINGS BEFORE THIS COURT:

4. Upon issuance of notice on 20.09.2024, Mr. Hardeep Sharma, Learned Counsel appeared for the Respondent.

4(i). Upon listing of the case on 04.12.2024, no serious opposition has been made by the learned Counsel for Respondent to the prayer in these proceedings.

5. Heard, Mr. Romesh Verma, Learned Senior Counsel, as well as Mr. Hardeep Sharma, learned counsel for the respondent for some time and have perused the material on record.

MANDATE OF LAW REGARDING TRANSFER OF PROCEEDINGS:

6. While dealing with the issue of transfer of proceedings from one court to another in matrimonial matters, the convenience of wife is to be preferred over convenience of husband, in terms of the mandate of the Hon'ble Supreme Court in Sumita Singh v. Kumar Sanjay and another (2001) 10 SCC 41, it was held by the Hon'ble Supreme Court that in a case where the wife seeks transfer of the petition, then 2024:HHC:14075 as against husband's convenience, it is the wife's convenience which must be looked at.

6(i) In *Soma Choudhury v. Gourab Choudhary* (2004) 13 SCC 462, it was held by the Hon'ble Supreme Court that once the wife alleges that she has no source of income, whatsoever and was entirely dependent upon his father, who was a retired government servant, then it was the convenience of the wife which was required to be looked into and not that of the husband, who had pleaded a threat to his life. It was further observed that if the respondent therein had any threat to his life, he could take police help by making an appropriate application to this effect. 6(ii) In *Rajani Kishor Pardeshi v. Kishor Babulal Pardeshi* (2005) 12 SCC 237, in a case seeking transfer of the case at the instance of the wife, it was specifically held by the Hon'ble Supreme Court that convenience of wife was the prime consideration. 6(iii) Similarly, while dealing with the application for transfer of proceedings in *Kulwinder Kaur alias Kulwinder Gurcharan Singh v. Kandi Friends Education Trust and others* (2008) 3 SCC 659, the Hon'ble Supreme Court after analyzing the provisions of Sections 24 and 25 of the Code of Civil Procedure laid down certain broad parameters for transfer of cases and it was held:-

"23. Reading Sections 24 and 25 of the Code together and keeping in view various judicial pronouncements, certain broad propositions as to what may constitute a ground for transfer have been laid down by Courts. They are balance of convenience or inconvenience to the plaintiff or the defendant or witnesses; convenience or inconvenience of a particular place of trial having regard to the nature of evidence on the points involved in the suit; issues raised by the parties; reasonable apprehension in the mind of the litigant that he might not get justice in the court in which the suit is pending; important questions of law involved or a considerable section of public interested in the litigation; "interest of justice"

demanding for transfer of suit, appeal or other proceeding, etc. Above are some of the instances which are germane in considering the question of transfer of a suit, appeal or other proceeding. They are, however, illustrative in nature and by no means be treated as exhaustive. If on the above or other relevant considerations, the Court feels that the plaintiff or the defendant is not likely to have a "fair trial" in the Court from which he seeks to transfer a case, it is not only the power, but the duty of the Court to make such order.

6(iv) In *Arti Rani alias Pinki Devi and another v. Dharmendra Kumar Gupta* (2008) 9 SCC 353, the Hon'ble Supreme Court was dealing with a case where the wife had sought transfer of proceedings on the ground that she was having a minor child and it was 2024:HHC:14075 difficult for her to attend the Court at Palamu, Daltonganj, which was in the State of Jharkhand and at a quite distance from Patna where she was now residing with her child. Taking into consideration the convenience of the wife, the proceedings were ordered to be transferred.

6(v) Similarly, in *Anjali Ashok Sadhwani v. Ashok Kishinchand Sadhwani* AIR 2009 SC 1374, the wife had sought transfer of the case to Bombay from Indore in Madhya Pradesh on the ground of inconvenience as there was none in her family to escort her to Indore and on this ground the proceedings were ordered to be transferred. 6(vi). In the case of *Rajani Kishor Pardeshi Versus Kishor Babulal Pardeshi* (2005) 12 SCC 237, the Hon'ble Supreme Court has held as under:-

"In this type of matter, the convenience of the wife is to be preferred over the convenience of the husband. Hindu Marriage Petition No.6 of 2004, Kishor Babulal Pardeshi v. Rajani Kishor Pardeshi pending before the Court of Civil Judge, Senior Division at Panvel, Mumbai, Maharashtra is transferred to the Family Court of proper jurisdiction at Satana, 2024:HHC:14075 Madhya Pradesh."

6(vii). In Civil Appeal No.4894 of 2022 [arising out of SLP(C) No(s).16465 of 2021], titled as N.C.V. Aishwarya versus A.S. Saravana Karthik Sha, the Hon'ble Supreme Court has outlined the cardinal principles for considering prayer for transfer of proceedings, from one Court-place to another, in matrimonial matters, in following terms:-

"8. It is not disputed that the appellant is the resident of Chennai and that the appellant's husband-respondent herein is the resident of Vellore and he is employed. The appellant who is 21 years old does not have any source of income of her own as she is not employed and is totally dependent on her parents for her livelihood. In order to attend the court proceedings of the case filed by her husband at Vellore she has to travel alone all the way from Chennai to Vellore as her parents are not in a position to accompany her on account of their old age. Secondly, the appellant has also filed a petition, H.M.O.P. No.1741 of 2021, for restitution of conjugal rights and another petition, M.C. Sr. No.672 of 2021, for her maintenance before the Family Court at Chennai.

9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their
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behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

ANALYSIS:

7. Taking into account the entirety of the facts and circumstances of the case and the cardinal principles outlined by the Hon'ble Supreme Court, in Sumita Singh, Rajani Pardeshi and N.C.V. Aishwarya's case [supra], this Court is of considered view, that the present petition deserves to be allowed, for the reason, that firstly, the convenience of petitioner-wife has to be preferred over the convenience of the Respondent; and secondly, once the petitioner-wife asserts herself to be economically unsound having no source of livelihood with 2024:HHC:14075

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no movable or immovable property in her name also supports the plea of the petitioner; and thirdly, once the financial constraints of petitioner-wife restrains her from going from Kinnaur to Shimla to attend each and every hearing(s) of the case is also a relevant factor; and fourthly, the transfer of instant proceedings will enable both the parties to participate both the pending cases i.e. HMA Case for dissolution of marriage and Maintenance Case under Section 125 Cr.P.C., at one place i.e. under Court of Principal Judge (Family Court) Kinnaur at Rampur Bushehar with certainly effectuate the cause of justice between the parties herein; and lastly, once the Learned Counsel for the Respondent has not seriously opposed the prayer of the petitioner then, in these circumstances, the plea of the petitioner carries weight and deserves to be allowed.

7(i). A similar issue, praying for transfer of proceedings from one Court to another, has been granted in CMPMO No.466 of 2020, titled as Monu versus Rakesh Kumar, decided on 26.07.2023 and in 2024:HHC:14075

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other matters i.e. CMPMO No.604 of 2023, titled as Manisha Thakur versus Akash Chauhan, decided on 05.12.2023 and in CMPMO No.688 of 2023, titled as Sumiti Chandel versus Parvesh Singh, decided on 10.01.2024 in following terms:-

"6. In view of the mandate of law referred to above, and the no objection accorded by the learned counsel for the respondent herein; the present petition is allowed and H.M. Misc. Petition No. 351 of 2023, titled as Parvesh Singh Vs Sumiti Chandel, pending before the Additional Principal Judge Family Court Hamirpur, Himachal Pradesh is ordered to be transferred to the Principal Judge, Family Court, Solan, Himachal Pradesh."

7(ii). In a matter having similar facts and situation, this Court has allowed the transfer of proceedings on request of wife, in CMPMO No.706 of 2023, titled as Chandni versus Rajeev Pathik, decided on 04.11.2024, in following terms:-

"8. In view of the above discussion and for the reasons, recorded herein-above, the present petition is allowed; and the proceedings i.e. HMA No.179-S/3 of 2023, titled as Rajeev Pathik versus Chandni, pending before the Court of Learned Principal Judge (Family Court), Shimla (HP) are ordered to be transferred to the Court of Learned Principal Judge [Family Court] Mandi, District

Mandi [HP]."

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CONCLUSION AND DIRECTIONS:

8. In view of the above discussion and for the reasons, recorded herein-above, the present petition is allowed; and the proceedings i.e. HMA No.157 of 2023, [as in Annexure P-2] titled as Mahinder Lal versus Shalu, pending before the Court of Learned Principal Judge [Family Court], Shimla, District Shimla [HP] are ordered to be transferred to the Court of Learned Principal Judge [Family Court] Kinnaur at Rampur Bushher, District Shimla [HP].

9. Consequent upon the directions contained hereinabove, Registry is directed to inform the Court of Learned Principal Judge (Family Court), Shimla, District Shimla [HP] to transfer entire case records of HMA No. 157 of 2023, titled as Mahinder Lal versus Shalu and others to the Court of Learned Principal Judge (Family Court) Kinnaur at Rampur Bushehar District Shimla [HP] within two weeks from today; with further directions to the Court of Family Court Kinnaur at Rampur Bushehar to issue fresh 2024:HHC:14075

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notice(s) to the parties and then to proceed further in the matter, in accordance with law.

In aforesaid terms, the instant writ petition is allowed and all pending miscellaneous application(s), if any, shall also stand disposed of, accordingly.

(Ranjan Sharma) Judge December 4, 2024 (himani)